

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.240	0.111	0.006	0.204	0.208
Trial Fee-Shifting	0.230	0.167	0.008	0.217	0.276
Complete Fee-Shifting	0.312	0.088	0.072	0.249	0.302